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Athens, 31-10-2024
Protocol No.: 2990

DECISION 39/2024
(Plenary)

The Hellenic Data Protection Authority convened, at the invitation of its President, in an extraordinary session at its headquarters on 23-07-2024, in order to examine the case referred to in the background of this document. Present via teleconference were the President of the Authority Konstantinos Menoudakos, the regular members Spyridon Vlachopoulos, as rapporteur, Grigorios Tsolias, Konstantinos Lamprinoudakis, Christos Kalloniatis, and Aikaterini Iliadou. In the session, without voting rights, were present, by order of the President, Eleni Kapralou, legal expert, as assistant rapporteur, and Irini Papageorgopoulou, employee of the Administrative Affairs Department, as secretary.

The Authority took into account the following:

With the complaint numbered G/ΕΙΣ/8670/09-07-2022 submitted to the Authority and the attached documents, A (hereinafter referred to as "the complainant"), who served in the National Intelligence Service (hereinafter EYP or "the complained party"), complains against the latter for the illegal leak of personal data concerning her, specifically that with the document numbered ... (...) of EYP, lists of the personnel of the service who served in ... and in ..., where she also belonged, were transmitted to the Minister of Citizen Protection, the Deputy Minister of Citizen Protection, and the Chief of EL.AS., and these lists contained her full name, her university education, the category/branch to which she belonged (university education ...), as well as her field of expertise (degree ..., master's ...).

The Authority, in the context of examining the above complaint, sent to EYP the document numbered G/ΕΞΕ/939/22-03-2024 requesting opinions. Subsequently, EYP responded to the above document with its letter numbered G/ΕΙΣ/3447/12-04-2024, specifically claiming: 1) That EYP, after the passage of Law 4873/2021 and the signing by the President of the Republic of the order for its publication in the Government Gazette on 15-12-2021, transmitted to the Minister of Citizen Protection, the Deputy Minister of Citizen Protection, and the Chief of EL.AS. the document numbered ..., with attached lists of the personnel serving in EYP (...). These lists included the full names of the employees, their category, branch, rank, as well as the degrees they held, information necessary for the issuance of decisions regarding their transfers and placements in accordance with the provisions of Article 74, Government Gazette Α'/248/16-12-2021, 2) That the contested transmission took place from EYP to the Ministry of Citizen Protection, which is a public entity, under the terms of Article 26 of Law 4624/2019, that is, in the context of executing EYP's duties, but also the stipulated conditions of Article 24 of the aforementioned Law, in view of the impending transfer of the complainant and the need to verify her details by EL.AS. before the administrative act of her transfer was completed. The data transmitted were accurate and were securely sent to the competent administrative bodies for the issuance of the relevant administrative acts regarding the transfer, 3) That the transmission occurred just one day after the passage and one day before the entry into force of Law 4873/2021 and should be examined in the context of cooperation and preliminary work of public services, which is a common practice among services when similar legal provisions are to be applied. Moreover, this transmission would have taken place anyway on 16-12-2021, the date of entry into force of the aforementioned Law, 4) The data transmitted were deemed absolutely necessary for the purpose of their transfer, were accurate, and were securely transmitted to the competent bodies, and finally, 5) that there was no kind of "leak of personal data" and that the transmission was lawful, carried out for the purpose of issuing the administrative acts of the transfer, and was already known to the complainant from

the time of its submission to the Hellenic Parliament for voting, especially since it had received

significant publicity. Following the above, the Authority summoned, with its letters numbered Γ/ΕΞ/1177/17-04-2024 and Γ/ΕΞ/1178/17-04-2024, A and the EYP respectively for a hearing via videoconference on 23-04-2024, in order to present their views on the case. During the session of the Authority's Plenary on 23-04-2024, the complainant attended via videoconference along with her lawyer Georgios Stamatidis, witness B, to whom no questions were posed during the said hearing, and on behalf of the complained party, G, Legal Advisors of the EYP, D, Head of the Administrative Support and Human Resources Directorate, and E, Data Protection Officer of the EYP. During the hearing, the parties presented their views and subsequently, they were given a deadline and submitted in a timely manner, the complainant the memorandum numbered Γ/ΕΙΣ/3996/01-05-2024, and the complained party the memorandum numbered Γ/ΕΙΣ/4009/01-05-2024. Specifically, the complainant in her memorandum numbered Γ/ΕΙΣ/3996/01-05-2024 claims: 1) That on 15-12-2021, the date of transmission of her personal data, Article 74 of Law 4873/2021, which provided for the mandatory transfer of the political staff of the EYP serving in ... to the central and regional services of the Hellenic Police, was not in effect. The effective date of Law 4873/2021 was December 16, 2021, therefore there was no legal basis for the transmission of the personal data of EYP employees on 15-12-2021, countering the relevant claims of the EYP that the said transmission took place, on the one hand, in full compliance of the Service with a provision of Law, and on the other hand, that it was done for the specified purpose explicitly provided by a provision of Law, 2) That in the Greek legal order, a law is understood as the formal, that is, an act of a legislative body, which establishes a rule of law. Bills and proposals for laws that have been voted on become laws of the state with their issuance and publication by the President of the Republic (Articles 42 par. 1 and 35 par. 1 of the Constitution), that is, their publication in the Government Gazette is required as a constituent element of their validity, 3) That according to the provisions of Articles 14 and 17 of Law 3649/2008, administrative documents relating to the internal operation of the EYP, as well as those referring to the service status of its personnel, are confidential, 4) That the information transmitted constitutes personal data and is confidential, therefore its processing is only permitted when specifically provided by a provision of Law, and furthermore only if the subject has given their consent, after having been informed in an appropriate and clear manner, about the data and the purpose of the processing, the identity of the data controller, the recipient of the data, and the existence of the right of access, 5) That in violation of Article 36 of Law 4624/2019, the specific data processing was not carried out by specially authorized employees for this purpose, whose names were communicated to the EYP, nor was the further transmission of the above personal data carried out after approval from the EYP, 6) That the processing of data carried out by a public authority must meet the legality requirements of Article 6 of the GDPR, 7) That in order for personal data to be lawfully processed, according to the GDPR, the conditions for the application and adherence to the principles of Article 5 par. 1 of the GDPR must be cumulatively met, 8) That the EYP transmitted, among other things, the information "...", without it being necessary, given that the classification of its political staff into categories and branches is done depending on whether they hold a university degree or not, and finally 9) that in violation of the provision of Article 5 par. 1 (f) of the GDPR regarding the obligation to adhere to the principle of integrity and confidentiality of the data, unauthorized persons gained access to the data (Article 32 of the GDPR). Furthermore, she counters as vague and inaccurate the EYP's claim that the said transmission was made in accordance with the provisions of Article 26 par. 1 of Law 4624/2019, claiming that the complained party does not specify which of the conditions set by Article 24 par. 1 of Law 4624/2019, to which Article 26 par. 1 of Law 4624/2019 refers, is met in this case. The EYP, in its memorandum, argued: 1) That the complainant did not address the EYP as the data controller and for this reason the Authority may not examine the said complaint, 2) That the EYP never received a standalone document.

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complaint of A, except for the complaint with reference number G/EIS/8670/9-7-2022, the subject of which was "Leak of personal data," with attached the document with reference number ... from the EYP and an excerpt of a status with the name of the complainant, the category, the sector, her degree, and her postgraduate title, from which only hypothetical conclusions could be drawn regarding the

actual reason for her complaint, and for this reason, the Authority should not examine the said complaint, 3) That for the implementation of the said transfer, the data that were absolutely necessary for the purpose of the transfer, namely only the name, category, sector, rank, and educational qualifications of the complainant, were securely transmitted, that is, within a sealed envelope, to the Ministry of Citizen Protection (see also Article 7 of P.D. 1/2017), 4) That in this case, there was a transmission of personal data from one public entity to another public entity under the terms of Article 26 paragraph 1 of Law 4624/2019, that is, within the framework of the execution of the duties of the transmitting entity, but also the need to bring the complainant's details to the attention of the Hellenic Police, in order to complete the administrative process of the complainant's transfer in application of the provisions of Article 74 of Law 4873/2021 (A' 248). That is, there was no leak of personal data, as none of the principles of Article 5 of the GDPR were violated, given that the transmission was lawful and legitimate, and the data were absolutely necessary for the purpose of the transfer, 5) That if it were to be assumed that there was a violation of the personal data legislation, the duration of this was limited (only a few hours), as there was a technical failure on the part of the National Printing Office, although the latter assured the publication of the Law on 15-12-2021, and it was not due to any malice on the part of the EYP, since the said transmission was made in order to ensure the rapid processing of the administrative procedure of the transfer, 6) That the transmission of personal data between public entities in this case concerns one and the same purpose, namely the employment status of the employee, because the transfer, although it simultaneously involves dismissal from the originating entity and "quasi-appointment" from the receiving entity of the employee, aims at the continuation of her public servant status, as it previously existed in the originating entity, and finally, 7) That regarding the violation of Article 36 of Law 4624/2019, the provision of this Law also governs the Hellenic Police, to which the personal data of the complainant were transmitted. From the grammatical interpretation of the provision, it can be inferred that the Hellenic Police had the obligation to inform the EYP about the specifically authorized employees who processed the said personal data. Given that until the issuance of her transfer act by the competent authority, the complainant was considered an employee of the EYP, the Hellenic Police was obliged under the provision of Article 36 of Law 4624/2019 to inform the EYP of the names of the specifically authorized employees who processed the personal data of the complainant.

The Authority, after examining all the elements of the file and the discussions that took place in the meeting of 23-04-2024, after hearing the rapporteur and the clarifications from the assistant rapporteur, who attended without voting rights after thorough discussion

CONSIDERED IN ACCORDANCE WITH THE LAW

1. Because, according to the provisions of Articles 51 and 55 of the General Data Protection Regulation (EU) 2016/679 (hereinafter, GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137), the Authority has the competence to supervise the application of the provisions of the GDPR, this Law, and other regulations concerning the protection of individuals from the processing of personal data. Specifically, from the provisions of Articles 57 paragraph 1 point (f) of the GDPR and 13 paragraph 1 point (z) of Law 4624/2019, it follows that the Authority has the competence to address the said complaint against the EYP, as it concerns the disclosure through the transmission of data included in a filing system within the meaning of Article 4 points 2 and 6 of the GDPR, thus for processing subject to the regulatory scope of Articles 2 paragraph 1 of the GDPR and 2 of Law 4624/2019.

2. Because, specifically, according to Article 4 point 1 of the GDPR, "personal data means any information relating to an identified or identifiable natural person..."

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Identifiable natural person ("data subject"); an identifiable natural person is one whose identity can be ascertained, directly or indirectly, particularly by reference to an identifier such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, psychological, economic, cultural, or social identity of that natural person.

3. Furthermore, according to Article 4(2) of the GDPR, the processing of personal data is defined as

"any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction."

4. According to Article 4(7) of the GDPR, the data controller is defined as "the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union law or the law of a Member State, the data controller or the specific criteria for its designation may be provided for by Union law or the law of a Member State."

5. In Article 5(1) of the GDPR, the principles that must govern processing are set forth, specifically: "1. Personal data shall be: a) processed lawfully, fairly, and in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency') (...)"

6. Furthermore, according to the principle of accountability introduced by the second paragraph of the same article, it is expressly stated that the data controller "shall be responsible for, and be able to demonstrate compliance with, paragraph 1 ('accountability')." This principle, which constitutes a cornerstone of the GDPR, entails the obligation of the data controller to be able to demonstrate compliance and for this purpose to verify and legally document any processing it carries out in accordance with the legal bases provided by the GDPR and national data protection law.

7. Specifically, in order for a processing operation to be considered lawful (and in accordance with Article 5(1) of the GDPR), one of the legal grounds for processing provided in Article 6(1) (letters a-f) of the GDPR must apply, namely: "1. Processing shall be lawful only if and to the extent that at least one of the following applies: a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes, b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract, c) processing is necessary for compliance with a legal obligation to which the data controller is subject, d) processing is necessary in order to protect the vital interests of the data subject or of another natural person, e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller, f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, especially if the data subject is a child. The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

8. In order for personal data to be processed lawfully, that is, in accordance with the requirements of the GDPR, the conditions for the application and observance of the principles of Article 5(1) of the GDPR must be cumulatively met, as also indicated by the judgment of the Court of Justice of the European Union (CJEU) of January 16, 2019, in case C496/2017 Deutsche Post AG v. Hauptzollamt Köln. The existence of a legal basis (Article 6 of the GDPR) does not...

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releases the data controller from the obligation to adhere to the principles (Article 5(1) GDPR) regarding the lawful nature, necessity, and proportionality as well as the principle of data minimization. In the event that any of the principles set forth in Article 5(1) GDPR are violated, the processing in question is deemed unlawful (contrary to the provisions of the GDPR), and the examination of the conditions for the application of the legal bases of Article 6 GDPR is rendered unnecessary. Thus, the unlawful collection and processing of personal data in violation of the principles of Article 5 GDPR is not remedied by the existence of a legitimate purpose and legal basis. Furthermore, the CJEU in its decision of 01-10-2015 in the context of case C-201/14 (Smaranda Bara) ruled that the informing of the data subject prior to the processing of their data is a prerequisite for the lawful and legitimate processing of personal data. Specifically, the data controller, in the context of its adherence to the principle of lawful or fair processing of personal data, is obliged to inform the data subject that their

data will be processed in a lawful and transparent manner and to be in a position at all times to demonstrate its compliance with these principles (principle of accountability according to Article 5(2) in conjunction with Articles 24(1) and 32 GDPR).

9. Furthermore, the recognition and selection of the appropriate legal basis from those provided in Article 6(1) GDPR is closely linked to the principle of lawful or fair processing as well as to the principle of purpose limitation, and the data controller is obliged not only to select the appropriate legal basis prior to the commencement of processing but also to inform the data subject in accordance with Article 13(1)(c) GDPR about its use, as the selection of each legal basis exerts legal influence on the exercise of the rights of the data subjects. Specifically, the selection of the legal basis for processing personal data must take place prior to the commencement of processing, and the data controller is obliged based on the principle of accountability (see Article 5(2) in conjunction with Articles 24 and 32 GDPR) to select the appropriate legal basis from those provided in Article 6(1) GDPR, as well as to be in a position to demonstrate adherence to the principles of Article 5(1) GDPR, including necessarily the documentation on which it based its conclusion regarding the relevant legal basis. Moreover, with the GDPR, a new compliance model was adopted, the central axis of which is the aforementioned principle of accountability, within the framework of which the data controller is obliged to design, implement, and generally take the necessary measures and policies so that the processing of data is in accordance with the relevant legislative provisions. Furthermore, the data controller bears the additional duty to demonstrate at any time its compliance with the principles of Article 5(1) GDPR. It is not coincidental that the GDPR incorporates accountability (already mentioned Article 5(2) GDPR) into the regulation of the principles (Article 5(1) GDPR) governing processing, endowing it with the function of a mechanism for their compliance, essentially reversing the "burden of proof" regarding the lawfulness of processing (and generally the adherence to the principles of Article 5(1) GDPR), transferring it to the data controller, so that they bear the burden of invoking and proving the lawfulness of the processing.

10. Because the principles of fair and transparent processing require that the data subject be informed about the existence of the processing operation and its purposes. The data controller must provide the data subject with any further information that is necessary.

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necessary for ensuring fair and transparent processing, taking into account the specific circumstances and context in which the processing of personal data takes place. If personal data is permitted to be disclosed to another recipient, the data subject should be informed when the personal data is disclosed for the first time to the recipient. When the data controller intends to process personal data for a purpose other than that for which the data was collected, the data controller must provide the data subject, prior to such further processing, with information about that purpose and any other necessary information (Recitals 60-61 GDPR). Specifically, according to paragraphs 1 and 2 of Article 13 of the GDPR, when personal data has been collected from the data subject, the data controller provides the data subject with the information referred to in these paragraphs, while paragraphs 3 and 4 of the same article state that "When the data controller intends to further process personal data for a purpose other than that for which the personal data was collected, the data controller provides the data subject, prior to such further processing, with information about that purpose and any other necessary information," as stated in paragraph 2. 4. Paragraphs 1, 2, and 3 do not apply when and insofar as the data subject already has the information."

According to the above, the data controller has an obligation to inform proactively the data subject, meaning that this obligation does not depend on a request from the data subject, but rather the data controller must comply with it proactively, regardless of whether the data subject expresses interest in the information.

11. Since according to Article 1 paragraph 1 of Law 3649/2008 "The National Intelligence Service (E.Y.P.) is an independent public policy service and is subject to the Minister of the Interior, who is responsible for determining the action of the E.Y.P. within the framework of the national priorities of government policy, subject to Article 5 paragraph 3 of Law 2292/1995." Furthermore, according to

Article 5 paragraph 3 of Presidential Decree 81/2019 "The National Intelligence Service, which was established by Article 1 of Law Decree 2421/1953 and renamed and organized by Law 1645/1986 and Law 3649/2008 (A' 39) is transferred, as a whole of responsibilities, positions, and personnel, to the Prime Minister."

12. Since furthermore, with Article 74 of Law 4873/2021 (Government Gazette A'/248/16-12-2021): Regulation of personnel issues of the National Intelligence Service (E.Y.P.) "1. The personnel serving in Subdivision C of Directorate B of Collection and Analysis of Information (D.SY.A.P-B) of subparagraph (a) of paragraph 1 of Article 1 of Presidential Decree 1/2017 (A' 2) and in the offices of the Regional Support Units of Subdivision C of subparagraph (b) of paragraph 1 of Article 1 of the same presidential decree as specified in the Internal Regulation and the attached Table of Composition and Distribution of Personnel of the E.Y.P., is transferred to Central or Regional Services of the Hellenic Police, particularly to those exercising responsibilities of public and state security, notwithstanding any general or special provision, with the same employment relationship, to newly established personal positions of civil personnel, which are abolished with the departure of the employees holding them in any manner.

2. The personnel of paragraph 1 is transferred to organizational structures of the Hellenic Police as provided in its Regulation, according to their qualifications - specialties that correspond to the same category/educational level to which they belong, based on the formal qualifications they possess and in accordance with the provisions of Presidential Decree 50/2001 (A' 39) with the same rank and salary scale they held in the originating Service. For the transfer of the personnel, a decision is issued by the Minister of Citizen Protection, which is not published in the Government Gazette according to paragraph 5 of Article 17 of Law 3649/2008 (A' 39). For the placement of the personnel in the Services of the Hellenic Police...

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A decision of the Chief of the Hellenic Police is issued, taking into account his preferences by regional unit.

3. The personnel transferred according to paragraphs 1 and 2 are paid by the Hellenic Police. In the event that the transferred personnel receive lower monthly remuneration compared to the monthly remuneration of the originating Service, the difference is maintained as personal according to paragraph 4 of Article 27 of Law 4354/2015 (A' 176). The aforementioned personnel retain the pension and insurance status they had until the date of transfer.

4. The required credits for the total remuneration of the transferred personnel for the current year 2021, as well as for the year 2022, are transferred from the E.Y.P. to the Hellenic Police.

13. Since, according to paragraph 1 of Article 24 of Law 4624/2019: "1. The processing of personal data by public authorities for a purpose different from that for which they were collected is permitted when such processing is necessary for the fulfillment of the duties assigned to them and provided that it is: a) necessary to verify the information provided by the data subject, as there are reasonable indications that this information is incorrect; b) necessary to prevent risks to national security, national defense, or public safety, or to ensure tax and customs revenues; c) necessary for the prosecution of criminal offenses; d) necessary to prevent serious harm to the rights of another person; e) necessary for the production of official statistics. (...)". Furthermore, Article 26 of the same Law provides the following: "1. The transfer of personal data from one public authority to another is permitted, provided that it is necessary for the performance of the duties of the transferring authority or the third party to whom the data is transferred and that the conditions allowing processing according to Article 24 are met. The third party to whom the data is transferred processes it only for the purpose for which it was transferred. Processing for other purposes is permitted only if the conditions of Article 24 are met. 2. Public authorities may transfer personal data to private entities provided that: a) the transfer is necessary for the performance of the duties of the transferring authority and the conditions of Article 24 are further met; b) the third party to whom the data is transferred has a legitimate interest in being aware of the transfer and the data subject has no legitimate interest in not having the data concerning them transferred; or c) the processing is necessary for the establishment, exercise, or support of legal claims and the third party has committed to the public authority that transferred the data that it will

process it only for the purpose for which it was transferred. Processing for other purposes is permitted if the transfer is allowed according to paragraph 1 and the transferring authority has provided its consent for the transfer. (...)"

Regarding the compatibility of the aforementioned provisions of Articles 24 and 26 of Law 4624/2019 with the provisions of the GDPR, which E.Y.P. invokes, the Authority, in its Opinion No. 1/2020, concluded that the GDPR does not grant the national legislator the authority to establish new "national legal bases," but only to specify the legal bases of Article 6 paragraph 1 subparagraphs c and e of the GDPR, under the terms and guarantees provided by the provisions of paragraphs 2 and 4 of Article 6 of the GDPR, and that from the provision of Article 6 paragraph 4 of the GDPR regarding further processing for other purposes, different but compatible with the purposes of the initial collection, it follows that the national legislator is not obliged to take implementing measures for further processing since the GDPR itself establishes the criteria under a) to e) of that paragraph 4. With this opinion, it was specifically accepted that, even if it is considered that the national legislator had the authority from the GDPR to establish "national legal bases" for the further processing of data under Article 6 paragraph 4 of the GDPR, these should only constitute a specification of the legal bases of Article 6 paragraph 1 subparagraphs c and e of the GDPR and must respect, among other things, the principles of legality of Article 5 paragraph 1 of the GDPR. With these considerations, the Authority opined that the provisions of the aforementioned Articles 24 and 26 of the Law do not meet any of the aforementioned substantive and procedural conditions and guarantees arising from the GDPR. In the same opinion, the Authority reserves the right to examine any specific issue related to the compatibility of the provisions of Law 4624/2019 with the GDPR that...

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will arise in the context of exercising its powers and emphasizes that it will not apply provisions of Law 4624/2019, which will be deemed to be in conflict with the GDPR or do not find a basis in "opening - specification clauses."

14. Furthermore, according to Article 35 paragraph 1, subparagraph a of the Constitution, "No act of the President of the Republic is valid or executed without the countersignature of the competent Minister, who, by his mere signature, becomes responsible, and without its publication in the Government Gazette," while according to Article 42 paragraph 1, subparagraph a of the Constitution, "The President of the Republic issues and publishes the laws that have been voted by the Parliament within one month from their voting." From these provisions arises the fundamental principle, which is also based on other constitutional provisions, that for the completion of formal laws and presidential decrees, as well as other regulatory administrative acts, their publication in the Government Gazette is required as a constituent element of their validity. With its publication in the Government Gazette, the regulatory provision acquires legal status and can be applied, thus becoming accessible to citizens and creating a presumption of knowledge of it.

Moreover, an "act" of the President of the Republic, according to Article 35 paragraph 1 subparagraph a of the Constitution, is any written act performed by him in his capacity as a state authority and constitutes an exercise of his powers under the Constitution and the Laws. Furthermore, a prerequisite—besides the countersignature of the competent minister or, as the case may be, competent ministers—for the acts of the President of the Republic to be valid, according to Article 35 paragraph 1 subparagraph a of the Constitution, is their publication in the Government Gazette. The publication constitutes an external formal element, the absence of which renders the act void, and the requirement for publication is reiterated, specifically concerning formal laws, by Article 42 paragraph 1 of the Constitution.

9 See Council of State 4108/1999 Plenary, reasoning 6 and Council of State 1374/2022 Section, reasoning 6

10 See Council of State 4105/1995 Section, reasoning 6

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15. Because for the processing in question, the National Intelligence Service (EYP) has the status of

the data controller under Article 4 paragraph 7 of the GDPR concerning the personal data of its staff, which included the complainant. The claim of the EYP that the Authority has the ability not to examine the complaint because the complainant did not previously address the EYP as the data controller is to be rejected, given that according to Article 12 of the GDPR, the relevant request to the data controller concerns the exercise of a right under the GDPR and not the submission of a complaint regarding the violation of the provisions under the jurisdiction of the Hellenic Data Protection Authority (HDPa).

Furthermore, the claim of the EYP that it never received a separate document containing a complaint from A, but only the complaint with reference number G/EIS/8670/09-07-2022 regarding "Leakage of personal data," with attached the document with reference number ... from the EYP and an excerpt of a list with the name of the complainant, her category, branch, degree, and her postgraduate title, from which only hypothetical conclusions could be drawn regarding the actual reason for her complaint, and for this reason, the Authority should not examine the said complaint, is also to be rejected because from the complaint in question and the attached documents, the subject of the complaint is clearly evident, and all documents were communicated to the complained party with the reference number G/EXE/939/22-03-2024 document of the Authority.

16. Because in this case, from the study of all the elements of the case, it emerges that on the date of the contested transmission, namely on 15-12-2021, the President of the Republic had signed the bill voted by the Parliament, which contained the relevant provision regarding the transfer of EYP personnel; however, its publication in the Government Gazette took place one day later, specifically on 16-12-2021, at which point, and only then, did the relevant law acquire formal validity and legal status, according to the above. Therefore, on 15-12-2021, the EYP processed the personal data of the complainant by transmitting document number ... to the Minister of Citizen Protection, the Deputy Minister of Citizen Protection, and the Chief of the Hellenic Police, with attached the relevant lists of the serving personnel of the EYP, which include personal data.

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the complainant's data, specifically her full name, the branch/category, the degree, and the title of her studies, without prior publication in the Government Gazette of the relevant statutory law regarding the transfer of personnel from the National Intelligence Service (EYP) (i.e., Law 4873/2021), resulting in the absence of a legislative basis for the said transfer during the contentious transmission, and without prior notification to the complainant, as the data subject for this transmission. In this way, the contentious processing was carried out in violation of the principles of legality, objectivity, and transparency (Article 5, paragraph 1, point a of the GDPR), resulting in the complainant's personal data being subjected to unlawful and unfair processing that occurred in a non-transparent manner concerning the data subject.

Moreover, regardless of the reservations mentioned in paragraph 13 by the Authority regarding the validity of the provision invoked by the EYP, Article 26, paragraph 1 of Law 4624/2019, which concerns the transmission of personal data from one public authority to another when necessary for the execution of the duties of the transmitting authority or the third party to whom the data is transmitted, this provision does not apply in this case, for the reason that the contentious transmission of the complainant's personal data to the Hellenic Police did not constitute the execution of the EYP's duties, given that this obligation had not been assigned to it by the legislator, at least at the time of the contentious transmission, in relation to the transfer of the complainant. Therefore, it is unnecessary to examine whether the conditions of Article 24, paragraph 1, point b (as provided in point a of paragraph 1 of Article 26 of Law 4624/2019 concerning processing carried out by public authorities) are met, as well as to examine the claim made by the EYP in its memorandum numbered G/EIS/4009/01-05-2024 that "there was a transmission of personal data from a public authority (National Intelligence Service) to another public authority (Hellenic Police) under the terms of Article 26 of Law 4624/2019, that is, within the framework of executing the duties of the transmitting authority, but also the need to present the complainant's details to the Hellenic Police in order to complete the administrative process of her transfer in accordance with the provisions of Article 74 of Law 4873/2021 (A' 248)."

Furthermore, given that the contentious processing in question is contrary to Article 5, paragraph 1,

point a of the GDPR, and that, according to what is stated in paragraph 8, the cumulative fulfillment of the conditions for the application and adherence to the principles of Article 5, paragraph 1 of the GDPR is required for personal data to be lawfully processed, it is unnecessary to examine the fulfillment of the other principles of lawful processing of data based on Article 5, as well as the examination of the conditions for the application of the legal bases of Article 6 of the GDPR, and the related claims made by the involved parties, regardless of the fact that the EYP, as the data controller, does not invoke any of the legal bases mentioned restrictively in Article 6 of the GDPR and is unable to prove the legality of the said processing.

17. As mentioned above, the data subject was not informed about the transmission of her data, and the relevant claim by the EYP that "Moreover, the above-mentioned provision of law that mandated the transfer of EYP employees to another Public Authority was already known from the time of its submission to the Hellenic Parliament for voting, had received significant publicity, and was discussed long before its voting (...)" is not substantial, as notification through the publicity invoked by the EYP regarding this issue does not meet the requirements of Article 13 of the GDPR, according to which notification requires an action by the data controller directed at the data subject, which did not occur in this case.

18. Therefore, it is established that the EYP, as the data controller, carried out the contentious processing of the complainant's personal data in violation of a) the principles of legality, objectivity, and transparency of Article 5, paragraph 1, point a of the GDPR, as it based its actions on a non-existent law, and b) Article 13 of the GDPR because it did not inform the complainant about this specific processing, as the data subject.

19. Since the violation of the fundamental principles for processing, as detailed above, incurs the imposition of administrative sanctions under Article

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According to Article 83(5)(a) of the GDPR, the violation of the right of data subjects provided for in Article 13 of the GDPR incurs the imposition of relevant sanctions under Article 83(5)(b) of the GDPR. Furthermore, according to the GDPR (Recital 148), in order to strengthen the enforcement of the rules of this Regulation, sanctions, including administrative fines, should be imposed for each violation of this Regulation, in addition to or instead of appropriate measures imposed by the supervisory authority in accordance with this Regulation.

20. Since the Authority, based on the above, deems that the imposition of a corrective measure is not sufficient to restore compliance with the provisions of the GDPR that have been violated, and that, based on the circumstances identified, an additional effective, proportionate, and deterrent administrative monetary fine must be imposed under Article 83 of the GDPR, both to restore compliance and to sanction the unlawful behavior.

21. Furthermore, the Authority took into account the criteria for determining the fine set out in Article 83(2) of the GDPR, paragraph 5 of the same article applicable to the present case, Article 39(1) and (2) of Law 4624/2019 concerning the imposition of administrative sanctions on public sector entities, and the Guidelines 4/2022 of the European Data Protection Board for calculating administrative fines for the purposes of Regulation 2016/679, which were approved on 24/5/2023, as well as the factual data of the examined case and in particular:

i) The fact that the entity being reported, in its capacity as data controller, violated the principle of lawfulness, fairness, and transparency provided for in Article 5(1)(a), that is, it violated a fundamental principle of the GDPR for the protection of personal data.

ii) The fact that adherence to the principles set out in Article 5(1)(a) of the GDPR is of paramount importance, primarily the principle of lawfulness, so that if this is absent, the processing becomes unlawful from the outset, even if the other processing principles have been adhered to, especially in this case where no documentation was provided to determine whether any of the legal bases set out in Article 6 of the GDPR apply. On the contrary, the reported entity justified the contentious processing merely by citing the acceleration of the procedure for operational reasons.

iii) The fact that the reported entity, in the absence of a legislative basis for the contentious processing, did not fulfill its obligation to prove the lawfulness of this processing, while at the same time failing to demonstrate that it complied with its obligation to inform as provided for in Article 13 of the GDPR, as specified above.

iv) The fact that the aforementioned violation is not proven to be attributable to the intent of the reported service, but rather to its negligence, due to the alleged failure of the National Printing Office, while the acceleration of the transmission by the entity was done for operational reasons.

v) The fact that the data controller did not delay in responding to the Authority's documents,

vi) The fact that from the evidence presented to the Authority, based on which it identified the aforementioned violations of the GDPR, it does not appear that the data controller caused material damage to the affected individual through the contentious processing.

22. Based on the above, the Authority unanimously decides that an administrative sanction, as mentioned in the operative part, must be imposed on the reported entity as the data controller, which is deemed proportionate to the severity of the violation.

FOR THESE REASONS

The Authority,

Imposes on the reported National Intelligence Service (EYP) as the data controller the effective, proportionate, and deterrent administrative monetary fine that is appropriate for this specific case, according to its particular circumstances, in the total amount of five thousand (5,000) euros, specifically four thousand (4,000) euros for the aforementioned established violation of Article 5(1)(a) and one thousand (1,000) euros for the aforementioned established violation of Article 13 of the GDPR, as specified above, in accordance with Articles 58(2)(h) and 83(5)(a) and (b) of the GDPR.

The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou